



भारत का राजपत्र The Gazette of India

असाधारण

EXTRAORDINARY

भाग II — खण्ड 1

PART II — Section 1

प्राधिकार से प्रकाशित

PUBLISHED BY AUTHORITY

सं० 2] नई दिल्ली, सोमवार, जनवरी 8, 2018/पौष 18, 1939 (शक)
No. 2] NEW DELHI, MONDAY, JANUARY, 8, 2018/PAUSHA 18, 1939 (SAKA)

इस भाग में भिन्न पृष्ठ संख्या दी जाती है जिससे कि यह अलग संकलन के रूप में रखा जा सके।
Separate paging is given to this Part in order that it may be filed as a separate compilation.

MINISTRY OF LAW AND JUSTICE (Legislative Department)

New Delhi, the 8th January, 2018/Pausha 18, 1939 (Saka)

The following Act of Parliament received the assent of the President on the 5th January, 2018, and is hereby published for general information:—

THE REPEALING AND AMENDING ACT, 2017

No. 2 OF 2018

[5th January, 2018.]

An Act to repeal certain enactments and to amend certain other enactments.

BE it enacted by Parliament in the Sixty-eighth Year of the Republic of India as follows:—

1. This Act may be called the Repealing and Amending Act, 2017. Short title.
2. The enactments specified in the First Schedule are hereby repealed to the extent mentioned in the fourth column thereof. Repeal of certain enactments.
3. The enactments specified in the Second Schedule are hereby amended to the extent and in the manner mentioned in the fourth column thereof. Amendment of certain enactments.
4. The repeal by this Act of any enactment shall not affect any other enactment in which the repealed enactment has been applied, incorporated or referred to; Savings.

and this Act shall not affect the validity, invalidity, effect or consequences of anything already done or suffered, or any right, title, obligation or liability already acquired, accrued or incurred, or any remedy or proceeding in respect thereof, or any release or discharge of or from any debt, penalty, obligation, liability, claim or demand, or any indemnity already granted, or the proof of any past act or thing;

nor shall this Act affect any principle or rule of law, or established jurisdiction, form or course of pleading, practice or procedure, or existing usage, custom, privilege, restriction, exemption, office or appointment, notwithstanding that the same respectively may have been in any manner affirmed or recognised or derived by, in or from any enactment hereby repealed;

nor shall the repeal by this Act of any enactment revive or restore any jurisdiction, office, custom, liability, right, title, privilege, restriction, exemption, usage, practice, procedure or other matter or thing not now existing or in force.

IndiaCode

THE FIRST SCHEDULE
(See section 2)

REPEALS

Year	No.	Short title	Extent of repeal
1	2	3	4
1850	XXXVII	The Public Servants (Inquiries) Act, 1850	The whole.
1852	VIII	The Sheriffs' Fees Act, 1852	The whole.
1866	XXI	The Converts' Marriage Dissolution Act, 1866	The whole.
1867	I	The Ganges Tolls Act, 1867	The whole.
1892	II	The Marriages' Validation Act, 1892	The whole.
1897	I	The Public Servants (Inquiries) Amendment Act, 1897	The whole.
1897	V	The Repealing and Amending Act, 1897	The whole.
1897	XIV	The Indian Short Titles Act, 1897	The whole.
1899	XXIII	The Church of Scotland Kirk Sessions Act, 1899	The whole.
1901	XI	The Amending Act, 1901	The whole.
1903	I	The Amending Act, 1903	The whole.
1928	XII	The Hindu Inheritance (Removal of Disabilities) Act, 1928	The whole.
1929	XXI	The Transfer of Property (Amendment) Supplementary Act, 1929	So much as is not repealed.
1934	XXVII	The Assam Criminal Law Amendment (Supplementary) Act, 1934	The whole.
1935	XIII	The Jubbulpore and Chhattisgarh Divisions (Divorce Proceedings Validation) Act, 1935	The whole.
1936	V	The Decrees and Orders Validating Act, 1936	The whole.
1936	XVI	The Bangalore Marriages Validating Act, 1936	The whole.
1938	XI	The Hindu Women's Right to Property (Amendment) Act, 1938	The whole.
1939	XXIX	The Indian Tariff (Fourth Amendment) Act, 1939	The whole.
1946	XXII	The Mica Mines Labour Welfare Fund Act, 1946	The whole.
1948	XL	The Indian Matrimonial Causes (War Marriages) Act, 1948	The whole.
1948	LI	The Imperial Library (Change of Name) Act, 1948	The whole.
1950	XXXIII	The Opium and Revenue Laws (Extension of Application) Act, 1950	The whole.
1951	I	The Code of Criminal Procedure (Amendment) Act, 1951	So much as is not repealed.
1951	II	The Code of Civil Procedure (Amendment) Act, 1951	So much as is not repealed.
1953	11	The Administration of Evacuee Property (Amendment) Act, 1953	The whole.
1954	3	The Ancient and Historical Monuments and Archaeological Sites and Remains (Declaration of National Importance) Amendment Act, 1953	The whole.
1954	42	The Administration of Evacuee Property (Amendment) Act, 1954	The whole.
1955	26	The Code of Criminal Procedure (Amendment) Act, 1955	So much as is not repealed.
1956	7	The Sales-Tax Laws Validation Act, 1956	The whole.
1956	27	The Representation of the People (Second Amendment) Act, 1956	The whole.
1956	66	The Code of Civil Procedure (Amendment) Act, 1956	So much as is not repealed.
1956	70	The Ancient and Historical Monuments and Archaeological Sites and Remains (Declaration of National Importance) Amendment Act, 1956	The whole.

1	2	3	4
1956	91	The Administration of Evacuee Property (Amendment) Act, 1956	The whole.
1956	93	The Young Persons (Harmful Publications) Act, 1956	The whole.
1956	100	The Motor Vehicles (Amendment) Act, 1956	The whole.
1959	37	The Central Excises and Salt (Amendment) Act, 1959	So much as is not repealed.
1959	41	The Criminal Law (Amendment) Act, 1959	So much as is not repealed.
1959	48	The Miscellaneous Personal Laws (Extension) Act, 1959	The whole.
1959	59	The Mineral Oils (Additional Duties of Excise and Customs) Amendment Act, 1959	So much as is not repealed.
1959	61	The Married Women's Property (Extension) Act, 1959	The whole.
1960	2	The Displaced Persons (Compensation and Rehabilitation) Amendment Act, 1960	So much as is not repealed.
1960	5	The Motor Vehicles (Amendment) Act, 1960	So much as is not repealed.
1960	19	The Hindu Marriages (Validation of Proceedings) Act, 1960	The whole.
1960	38	The Central Excises (Conversion to Metric Units) Act, 1960	So much as is not repealed.
1960	40	The Customs Duties and Cesses (Conversion to Metric Units) Act, 1960	So much as is not repealed.
1960	57	The British Statutes (Application to India) Repeal Act, 1960	The whole.
1966	47	The Representation of the People (Amendment) Act, 1966	So much as is not repealed.
1969	46	The Punjab Legislative Council (Abolition) Act, 1969	The whole.
1971	20	The Bengal Finance (Sales Tax) (Delhi Validation of Appointments and Proceedings) Act, 1971	The whole.
1971	54	The Coal Bearing Areas (Acquisition and Development) Amendment and Validation Act, 1971	The whole.
1972	62	The Limestone and Dolomite Mines Labour Welfare Fund Act, 1972	The whole.
1976	91	The Delhi Sales Tax (Amendment and Validation) Act, 1976	The whole.
1980	63	The Code of Criminal Procedure (Amendment) Act, 1980	So much as is not repealed.
1981	30	The Cine-workers Welfare Cess Act, 1981	The whole.
1983	20	The Delegated Legislation Provisions (Amendment) Act, 1983	The whole.
1984	19	The Government of Union Territories (Amendment) Act, 1984	So much as is not repealed.
1985	37	The Tea Companies (Acquisition and Transfer of Sick Tea Units) Act, 1985	The whole.
1985	81	The Banking Laws (Amendment) Act, 1985	So much as is not repealed.
1986	6	The Additional Duties of Excise (Textiles and Textile Articles) Amendment Act, 1985	The whole.
1986	7	The Additional Duties of Excise (Goods of Special Importance) Second Amendment Act, 1985	The whole.
1986	8	The Customs Tariff (Amendment) Act, 1985	The whole.
1986	19	The Administrative Tribunals (Amendment) Act, 1986	So much as is not repealed.
1986	46	The Taxation Laws (Amendment and Miscellaneous Provisions) Act, 1986	The whole.
1999	29	The Contingency Fund of India (Amendment) Act, 1999	The whole.

1	2	3	4
1999	31	The Securities Laws (Amendment) Act, 1999	The whole.
1999	32	The Securities Laws (Second Amendment) Act, 1999	The whole.
1999	45	The Vice-President's Pension (Amendment) Act, 1999	The whole.
2000	14	The President's Emoluments and Pension (Amendment) Act, 2000	The whole.
2000	49	The Protection of Human Rights (Amendment) Act, 2000	The whole.
2001	12	The Colonial Prisoners Removal (Repeal) Act, 2001	The whole.
2001	19	The Industrial Disputes (Banking Companies) Decision (Repeal) Act, 2001	The whole.
2001	22	The Judicial Administration Laws (Repeal) Act, 2001	The whole.
2001	24	The Indian Railway Companies (Repeal) Act, 2001	The whole.
2001	25	The Railway Companies (Substitution of Parties in Civil Proceedings) Repeal Act, 2001	The whole.
2001	26	The Hyderabad Export Duties (Validation) Repeal Act, 2001	The whole.
2001	50	The Code of Criminal Procedure (Amendment) Act, 2001	The whole.
2002	21	The St. John Ambulance Association (India) Transfer of Funds (Repeal) Act, 2002	The whole.
2002	22	The Code of Civil Procedure (Amendment) Act, 2002	The whole.
2002	23	The Vice-President's Pension (Amendment) Act, 2002	The whole.
2002	28	The National Institute of Pharmaceutical Education and Research (Amendment) Act, 2002	The whole.
2002	59	The Securities and Exchange Board of India (Amendment) Act, 2002	The whole.
2002	68	The North-Eastern Council (Amendment) Act, 2002	The whole.
2003	25	The Customs Tariff (Amendment) Act, 2003	The whole.
2003	31	The Prevention of Insults to National Honour (Amendment) Act, 2003	The whole.
2004	7	The Uttar Pradesh Reorganisation (Amendment) Act, 2003	The whole.
2004	28	The Special Tribunals (Supplementary Provisions) Repeal Act, 2004	The whole.
2004	29	The Unlawful Activities (Prevention) Amendment Act, 2004	The whole.
2005	1	The Securities Laws (Amendment) Act, 2004	The whole.
2005	5	The Central Excise Tariff (Amendment) Act, 2004	The whole.
2005	31	The Hire-purchase (Repeal) Act, 2005	The whole.
2005	51	The Prevention of Insults to National Honour (Amendment) Act, 2005	The whole.
2006	10	The Khadi and Village Industries Commission (Amendment) Act, 2006	The whole.
2006	20	The Delhi Special Police Establishment (Amendment) Act, 2006	The whole.
2006	30	The Union Duties of Excise (Electricity) Distribution Repeal Act, 2006	The whole.
2006	43	The Protection of Human Rights (Amendment) Act, 2006	The whole.
2006	51	The Jallianwala Bagh National Memorial (Amendment) Act, 2006	The whole.
2007	1	The Administrative Tribunals (Amendment) Act, 2007	The whole.
2007	16	The Taxation Laws (Amendment) Act, 2007	Sections 9 to 11.
2007	19	The National Institute of Pharmaceutical Education and Research (Amendment) Act, 2007	The whole.
2007	27	The Securities Contracts (Regulation) Amendment Act, 2007	The whole.
2008	28	The President's Emoluments and Pension (Amendment) Act, 2008	The whole.
2008	29	The Vice-President's Pension (Amendment) Act, 2008	The whole.
2008	35	The Unlawful Activities (Prevention) Amendment Act, 2008	The whole.
2009	1	The Governors (Emoluments, Allowances and Privileges) Amendment Act, 2008	The whole.

THE SECOND SCHEDULE

(See section 3)

AMENDMENTS

Year	No.	Short title	Amendments
1	2	3	4
2007	29	The National Institutes of Technology, Science Education and Research Act, 2007	In clause (d) of section 3, the words "as the case may be" shall be omitted.
2009	27	The Prevention and Control of Infectious and Contagious Diseases in Animals Act, 2009	In sub-section (1) of section 1, for the word and figures "Bill, 2009", the word and figures "Act, 2009" shall be substituted.
2009	35	The Right of Children to Free and Compulsory Education Act, 2009	In section 1, for the marginal heading, the marginal heading "Short title, extent, application and commencement" shall be substituted.

DR. G. NARAYANA RAJU,
Secretary to the Govt. of India.